

26CHCV00110 26CHCV00110

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-08-05

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Case Number: 26CHCV00110 Hearing Date: August 5, 2026 Dept: F46

Dept. F-46

Hearing Date: August 4, 2026

Case Number: 26CHCV00110

APPLICATION FOR
WRIT OF POSSESSION

Application filed on March 16, 2026.

MOVING PARTY: Plaintiff Ally Bank, a corporation

RESPONDING PARTY: Defendants Oggyub Advertisement, a corporation, and Oganess Gyubalyan, an individual

NOTICE: OK

RELIEF REQUESTED: Issuance of writ of possession.

RULING: Granted.

BACKGROUND

On March 5, 2025, Defendant Oggyub Advertisement entered into a written Retail Installment Sale Contract with Rydell Chrysler Dodge Jeep Ram in connection with the purchase and financing of one 2025 Ram ProMaster, Vehicle Identification No. 3C6LRVNG2SE538593. Defendant Oganess Gyubalyan

executed a Third Party Guaranty. The Contract required 72 monthly installments of \$1,052.46 beginning April 20, 2025. (Nunez Decl., ¶ 6, Ex. A.)

Rydell Chrysler Dodge Jeep Ram thereafter assigned its interest in the Contract to Plaintiff. The Confirmation of Assignment states that the dealership contemporaneously agreed to assign the Contract to Plaintiff but inadvertently failed to identify Plaintiff in the assignment section. The California Certificate of Title identifies Oggyub Advertisement as the registered owner and Ally Financial as lienholder. (Nunez Decl., ¶¶ 6-7, Exs. A, B.)

Defendants defaulted under the Contract when \$1,044.92 remained unpaid on the payment due May 20, 2025, and Defendants failed to make the regular monthly payments of \$1,052.46 due thereafter. (Nunez Decl., ¶ 9.) The Contract permits Plaintiff to take immediate possession of the Vehicle upon default. (Nunez Decl., ¶ 8, Ex. A.) Plaintiff demanded surrender of the Vehicle, which Defendants failed to honor. (Nunez Decl., ¶¶ 9, 11.) The outstanding balance as of the charge-off date of September 30, 2025 is \$53,381.76. (Nunez Decl., ¶ 9.)

Plaintiff now seeks a writ of possession against Defendants Oggyub Advertisement and Ogan Gyubalyan.

LEGAL STANDARD

A plaintiff may apply to the court for a writ of possession upon filing of the complaint in a civil action or at any time thereafter. (Code Civ. Proc., § 512.010(a).)

“[An] application [for a writ of possession] shall be executed under oath and shall include all of the following: (1) A showing of the basis of the plaintiff’s claim and that the plaintiff is entitled to possession of the property claimed. If the basis of the plaintiff’s claim is a written instrument, a copy of the instrument shall be attached. (2) A showing that the property is wrongfully detained by the defendant, of the manner in which the defendant came into possession of the property, and, according to the best knowledge, information, and belief of the plaintiff, of the reason for the detention. (3) A particular description of the property and a statement of its value. (4) A statement, according to the best knowledge, information, and belief of the plaintiff, of the location of the property and, if the property,

or some part of it, is within a private place which may have to be entered to take possession, a showing that there is probable cause to believe that such property is located there. (5) A statement that the property has not been taken for a tax, assessment, or fine, pursuant to a statute; or seized under an execution against the property of the plaintiff; or, if so seized, that it is by statute exempt from such seizure." (Id., subd. (b).)

A writ of possession may issue if, after hearing, the applicant establishes the probable validity of its claim to possession of the property at issue and posts any undertaking required by Code of Civil Procedure section 515.010. (Code Civ. Proc., § 512.060.)

Whether an applicant's claim is probably valid will depend on the applicable substantive violation for which the plaintiff is pursuing the writ. (See *Englert v. IVAC Corp.* (1979) 92 Cal.App.3d 178, 184.)

DISCUSSION

Plaintiff has met all the statutory requirements.

First, the declaration of Cristian Nunez, Plaintiff's Authorized Representative, declares that on March 5, 2025, Defendant Oggyub Advertisement executed a written Retail Installment Sale Contract in connection with the purchase and financing of a 2025 Ram ProMaster, and Defendant Ogan Gyubalyan executed a Third Party Guaranty. The Contract obligated Oggyub Advertisement to pay 72 monthly installments of \$1,052.46 beginning April 20, 2025. Rydell Chrysler Dodge Jeep Ram thereafter assigned the Contract to Plaintiff, and the Certificate of Title reflects Plaintiff's lien on the Vehicle. (Nunez Decl., ¶¶ 6-7, Exs. A, B.)

Defendants defaulted when \$1,044.92 remained unpaid on the payment due May 20, 2025, and Defendants failed to make the regular monthly payments of \$1,052.46 due thereafter. (Nunez Decl., ¶ 9.) The Contract expressly provides that upon default, Plaintiff may take immediate possession of the Vehicle. (Nunez Decl., ¶ 8, Ex. A.) Accordingly, Plaintiff has demonstrated its secured interest in the Vehicle and an immediate contractual right to possession upon default.

Second, Oggyub Advertisement came into possession of the Vehicle upon delivery. Despite demand from Plaintiff, Defendants have refused

to surrender possession. (Nunez Decl., ¶¶ 9, 11.) These facts establish that Defendants are wrongfully detaining the Vehicle within the meaning of Code of Civil Procedure section 512.010(b)(2).

Third, Plaintiff provided a specific description of the property, "2025 Ram ProMaster, motor vehicle, Vehicle Identification Number 3C6LRVNG2SE538593," together with a valuation of \$28,500.00. (Nunez Decl., ¶ 10, Ex. C; Application, item 4.) Plaintiff also provided information concerning the Vehicle's location, based on its best knowledge and belief, as required by section 512.010(b)(4). Plaintiff's records reflect that Oggyub Advertisement maintains its principal place of business at 13746 Victory Boulevard, Suite 209, Van Nuys, California 91401, and that Ogan Gyubalyan resides at 15832 Chatsworth Street, Granada Hills, California 91344. (Nunez Decl., ¶ 13.) The Court therefore finds probable cause to believe the Vehicle is located in a garage or other parking area at either address.

Fourth, Plaintiff declares that the Vehicle has not been taken for tax, assessment, or fine, nor taken under execution against Plaintiff's property. (Nunez Decl., ¶ 12; Application, item 8.)

Under section 512.060, a writ of possession may issue if Plaintiff establishes the "probable validity" of its claim to possession. Plaintiff's showing here meets that standard. The Contract, assignment documents, and title establish Plaintiff's secured interest in the Vehicle, Defendants defaulted on the payment obligations, and Plaintiff has demonstrated an immediate right to possession. The record therefore demonstrates that Plaintiff's claim to possession is probably valid.

Under section 515.010(b), if the Court finds that Defendants have no interest in the property, the Court shall waive the requirement of Plaintiff's undertaking and determine the amount of Defendants' undertaking. Nunez states that the Vehicle's average wholesale value is \$28,500.00 and its retail value is \$36,150.00, both of which are less than the \$53,381.76 owed under the Contract. (Nunez Decl., ¶¶ 9-10, Ex. C.) Because Defendants have no remaining equity interest in the Vehicle, Plaintiff is exempt from posting an undertaking.

Code of Civil Procedure section 515.020, subdivision (a), permits Defendants to prevent Plaintiff from taking possession of the Vehicle or regain possession of the Vehicle by filing an undertaking in the amount

determined by the Court under section 515.010(b). The Court determines that Defendants' undertaking shall be \$28,500.00.

Plaintiff has met all statutory prerequisites for issuance of a writ of possession under Code of Civil Procedure section 512.010 and has demonstrated the probable validity of its claim under section 512.060.

CONCLUSION

Plaintiff Ally Bank's Application for Writ of Possession is GRANTED.

The Court will sign Plaintiff's proposed order (CD-120) with corrections to the undertaking provisions.